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Veto of ethnic studies bill clouds future

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California Gov. Gavin Newsom vetoed a bill Wednesday that would have required students to take an ethnic studies class to graduate high school.

Newsom said that while he supports the concept of ethnic studies, he had concern about requiring a high school course when "there is much uncertainty about the appropriate K-12 model curriculum for ethnic studies."

Despite the veto, the state will continue to develop recommended ethnic studies curricula for schools and districts that choose to teach it.

The bill would have required students to take the course starting in the 2029-30 school year, but high schools would have been required to start providing the course in 2025. Currently, one out of five California high schools offer a course in ethnic studies.

"I have been closely monitoring the progress of the development of the K-12 ethnic studies curriculum," Newsom stated. "Last year, I expressed concern that the initial draft of the model curriculum was insufficiently balanced and inclusive and needed to be substantially amended. In my opinion, the latest draft, which is currently out for review, still needs revision."

Newsom's veto does not affect the state's plan to approve recommended curriculum for schools and teachers to consider using when they do teach ethnic studies. Still, the veto angered teachers and advocacy groups across the state.

"To flat out veto ethnic studies for high school students is unacceptable," said Kim Gavin Austin, a teacher at La Entrada High School in the San Juan Unified School District. "Public education promotes white supremacy, because of the way the curriculum is taught."

Austin, who is black, said she is concerned that teachers will not teach ethnic studies if it's not required. San Juan Unified offers the course as an elective.

"Today, in a failure to push back against racial rhetoric and bullying of Donald Trump, Governor Newsom vetoed AB 331," Assemblyman Jose Medina, D-Riverside, said in a statement. "The veto if AB 331 is a missed opportunity for the State of California and a disservice to our students who have called for ethnic studies in their schools. This veto comes at a time when the Trump administration is threatening to punish school districts for teaching anti-racism and anti-bias curriculum."

Past controversy marred the final decision

The latest debate with the curriculum centers on which ethnic groups would be included in the curriculum. The curriculum was created with the intention to cover four groups: Black/African American Studies, Chicano/Latino Studies, Native American Studies and Asian American Studies.

It nearly derailed over questions about how to include Arab Americans, Jewish Americans, and if the lessons were anti-Semitic and anti-Israel.

Lessons on Arab American communities were revised, and all but one were removed.

The curriculum has gone through several revisions and drafts, and theinitial draft was criticized, particularly by Jewish legislators and organizations for being anti-Semitic and anti-Israel.

Changes were made to get the bill through the Legislature on to Newsom's desk.

On the Assembly Floor in August, Assemblyman Jesse Gabriel, D-Encino, vice chair of the Jewish caucuspraised the AB 331, and said it was a huge accomplishment that it reached the governor. Gabriel cited several amendments already finalized in the bill, including making it unlawful to teach discriminatory lessons on race and ethnic background, the international movement to boycott Israeli productions, and any criticism of Israel.

On Wednesday, several groups, including the American Jewish Committee, praised the veto decision.

"We are relieved Governor Newsom acknowledged the concerns that so many citizens across California have expressed about the Ethnic Studies Model Curriculum," Roz Rothstein, CEO of Stand With Us, said in a statement. "The latest draft must be revised to accurately represent and include Jews, teach about antisemitism in all its forms, and remove guiding values and principles which will be used to justify bringing bias and hate into our classrooms."

Community members, including several Jewish groups in California who supported the curriculum, stated they believed the Arab American studies should be included, and should have discussions of oppression and Palestinians' push for statehood.

"Arab Resource Organizing Center and the Save Arab American Studies Coalition are really concerned with the direction of the narrative around ethnic studies curriculum as indicated by the amendments endorsed by the Jewish legislative caucus and the decision by Newsom to veto AB 331," read a statement from the center.

What's next?

State Superintendent of Schools Tony Thurmond said he supported the inclusion of Pacific Islander studies and Arab American studies within the curriculum.

Nearly 80% of California's K-12 student population identifies as non-white. In comparison, more than 60% of California teachers are white.

Theresa Montaño, an ethnic studies Professor at Cal State University, Northridge,and member of the original Ethnic Studies Advisory Committee, said that the majority of California students "were just told that their stories don't matter."

While the bill would have mandated the course across the state, it would not have required teachers to use the model curriculum that is being reviewed in the state's education department. Those two, state officials say, are separate.

The state's Instructional Quality Commission will meet in November to review and revise the curriculum.

State law requires the state Board of Education to take final action on the model curriculum by March 31.

Medina, the Inland Empire assemblyman, said he still committed to making ethnic studies available to all California students and plans to re-introduce the bill next year, and the Jewish Community Relations Council says it will continue to advocate for the inclusion of lessons on American Jewish experiences and antisemitism.

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